

LW5607B: LAND LAW II

Effective Term

Semester B 2025/26

Part I Course Overview

Course Title

Land Law II

Subject Code

LW - Law

Course Number

5607B

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

LW5607A Land Law I

Precursors

Nil

Equivalent Courses

LW3607B Land Law II

Exclusive Courses

Nil

Part II Course Details

Abstract

This course aims to help students -

- examine the nature, scope and significance of land law in Hong Kong
- develop a sound knowledge of the principles of land law in Hong Kong
- develop the following skills in relation to issues concerning land law in Hong Kong and other common law jurisdictions
 - research skills
 - analytical and problem-solving skills
 - effective written and oral communication skills
- develop an awareness of the social and commercial contexts in which land law operates
- develop awareness of the current academic discourse in land law

Course Intended Learning Outcomes (CILOs)

	CILOs	Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Describe and explain basic principles of land law.	40	x	x	x
2	Analyse and critically evaluate: - land law issues of topical interest - the operation of the substantive rules of land law: in terms of the objectives and practical implications of land law; their social and commercial contexts in relation to other branches of law.	25	x	x	x
3	Apply principles of land law to solve legal problems by: - researching issues of land law - analysing and solving problems in the area of land law - communicating their analysis clearly and precisely in their own words and in plain English.	25	x	x	x
4	Communicate ideas, arguments or advice clearly and coherently orally and in writing.	10	x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Researching	Researching primary and secondary sources of law in order to understand principles of land law in their practical application Students will acquire knowledge of principles of land law.	1	
2	Lectures	Students will receive guidance on basic research.	1	
3	Lectures	Students will be introduced to principles of land law in their practical application.	2	
4	Lectures	Students will learn how to solve problems by applying land law.	3	
5	Preparation for tutorials	Students will research issues of land law.	2, 3	
6	Preparation for tutorials	Students will be expected to research on the tutorial assignments, and be ready to contribute to discussion.	4	
7	Tutorials	Students will, by answering questions and engaging in exercises in relation to principles of land law, develop analytical and critical skills. Tutorial questions will require students to analyse facts and law and critically examine the adequacy and effective of the law in its current state.	1	
8	Tutorials	Students will be required to scrutinise, analyse and evaluate land law issues of topical interest.	2	
9	Tutorials	Students will be required to analyse fact situations and to apply case law precedents to ascertained facts.	3	

10	Tutorials	Students will be asked to discuss a particular tutorial question among themselves, with the tutor commenting on strengths and weaknesses of student contributions.	4	
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Assessment Tasks / Activities (ATs)

	ATs	CILO No.	Weighting (%)	Remarks ("-" for nil entry)	Allow Use of GenAI?
1	Participation (10%) - PowerPoint presentation (5%), - Attendance (2%) and - Proactiveness in addressing discussions in the tutorials (3%) (including but not limited to addressing various approaches in resolving the tutorial questions).	1, 2, 3	10	Participation (10%) -PowerPoint presentation (5%), -Attendance (2%) and -Proactiveness in addressing discussions in the tutorials (3%) (including but not limited to addressing various approaches in resolving the tutorial questions). Tutorials and assignments will demonstrate students' ability to understand and explain principles of land law. They will test students' ability to analyse and critically evaluate relevant legal principles. These will test students' ability to research, analyse and solve problems, and communicate solutions in writing.	No

2	Midterm Examination (duration: 1.5 hours) (30%)	1, 2, 3, 4	30	This essay/fact pattern exam will test the student's understanding of the fundamental principles of land law that have been covered in the first half of the semester. The exam will be an open book exam. Students are required to critically analyse land law principles and make conclusions on their findings. This exercise requires students to communicate ideas and the law clearly and coherently	No
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Continuous Assessment (%)

40

Examination (%)

60

Examination Duration (Hours)

3

Minimum Continuous Assessment Passing Requirement (%)

40

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

End-of-course examination: This will test students' ability to apply principles of land law to solve practical problems. The examination will test the ability of students to present their answers lucidly separating the relevant from the irrelevant issues.

The use of Generative AI tools is not allowed.

Grading of Student Achievement: Standard (A+, A, A-...F). Grading is based on student performance in assessment tasks / activities.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

To pass this course students must obtain an aggregate mark of 50% and a minimum of 50% in each of the coursework and the examination elements of the assessment. Coursework for this purpose means those ways in which students are assessed otherwise than by the end of session examination.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 and thereafter

To pass this course students must obtain an aggregate mark of 40% and a minimum of 40% in each of the coursework and the examination elements of the assessment. Coursework for this purpose means those ways in which students are assessed otherwise than by the end of session examination.

The duration of the examination will be at the discretion of the course leader. The course leader will announce the duration of the examination in the first week of the course. Similarly, the course leader will announce whether the examination will be closed book or open book.

To enable the full benefit to be obtained from this course, students should attend all of the classes and activities.

Assessment will be formative to enable students to demonstrate their capacity to understand, analyse and apply rules and principles and summative to assess ability to synthesise primary and secondary material to solve novel problems.

Assessment Rubrics (AR)

Assessment Task

Mid-Term Examination and Continuous Assessment (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

- an adequate command of legal doctrines and case law;
- a critical evaluation of current legal framework and
- writing style
- weaving the case precedents and arguments;

Excellent

(A+, A, A-) A+, A, A-

Good

(B+, B, B-) B+, B, B-

Fair

(C+, C, C-) C+, C, C-

Marginal

(D) D

Failure

(F) F

Assessment Task

Examination (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

- an adequate command of legal doctrines and case law;
- a critical evaluation of current legal framework and
- writing style
- weaving the case precedents and arguments;

Excellent

(A+, A, A-) A+, A, A-

Good

(B+, B, B-) B+, B, B-

Fair

(C+, C, C-) C+, C, C-

Marginal

(D) D

Failure

(F) F

Assessment Task

Mid-Term Examination and Continuous Assessment (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

- an adequate command of legal doctrines and case law;
- a critical evaluation of current legal framework and writing style
- weaving the case precedents and arguments;

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Examination (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

- an adequate command of legal doctrines and case law;
- a critical evaluation of current legal framework and writing style
- weaving the case precedents and arguments;

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

Co-ownership; tenancy in common; joint tenancy; leases and licences; Lost Modern Grant; Easements; Land Covenants; Deed of Mutual Covenants; Multi-storey Buildings and Building Management; New Territories Land and Chinese Customary Law

Detailed Syllabus

- a. Co-ownership
- b. Leases and Licences
- c. Mortgages and Other Securities
- d. Easements
- e. Land Covenants
- f. Deeds of Mutual Covenants
- g. Multi-storey Buildings and Building Management
- h. New Territories Land and Chinese Customary Law

Reading List

Compulsory Readings

Title	
1	Nil

Additional Readings

Title	
1	Text(s)
2	Students must refer to the reference texts as well as the primary materials (i.e. case law and Ordinances), which will be specifically referenced in individual lectures.
3	S.H. Goo and Alice Lee, Land Law in Hong Kong, 5th Ed (LexisNexis, 2022)
4	Sarah Nield, Hong Kong Land Law, 2nd Ed (Longman, 2008)
5	Conveyancing and Property Ordinance (Cap 219)
6	Malcolm Merry, Building Management in Hong Kong, 3rd Edition (LexisNexis, 2016)
7	Malcolm Merry, The Unruly New Territories (HKU Press, 2020)